CONFIDENTIAL
Enron Corp.
Case No. EC-2002-01038
Doc No. E158DC162
Date: 01/15/2003
ENRON CORP. - PRODUCED PURSUANT TO FERC SUBPOENA.
SUBJECT TO PROTECTIVE ORDER. CONFIDENTIAL TREATMENT REQUESTED.
RELEASE IN PART

From: Shackleton, Sara <sara.shackleton@enron.com>
Sent: Thu, 11 Oct 2001 07:21:22 -0700 (PDT)
To: Harris, Daniel <daniel.harris@gs.com>
Cc: Heard, Marie <marie.heard@enron.com>, Glover, Sheila <sheila.glover@enron.com>
Subject: RE: ECT Investments, Inc. account with Goldman Sachs International

Daniel: The Terms of Business Letter ("Letter") is fine. We require two signatures per our resolution. Marie Heard is having all remaining documents executed and will fax the Letter to you upon signature. Everything will be sent to you express mail. Thanks for your help. No need to call back unless you have specific directions or requests.

Sara Shackleton
Enron Wholesale Services
1400 Smith Street, EB3801a
Houston, TX 77002
Ph: (713) 853-5620
Fax: (713) 646-3490

-----Original Message-----
From: "Harris, Daniel" <Daniel.Harris@gs.com>@ENRON
Sent: Thursday, October 11, 2001 7:11 AM
To: Shackleton, Sara; Daniel.Harris@gs.com
Cc: Gordon, Talya
Subject: RE: ECT Investments, Inc. account with Goldman Sachs International

please see attached.
if ok, please sign and fax back to 44 20 7774 0457.

-----Original Message-----
From: Sara.Shackleton@enron.com [mailto:Sara.Shackleton@enron.com]
Sent: 09 October 2001 19:52
To: Daniel.Harris@gs.com
Subject: RE: ECT Investments, Inc. account with Goldman Sachs International

Sorry to not reply sooner - too many interruptions - see attached (I tried to track language in PB). Sara

(See attached file: Amendment to GSI TOBR1.doc)

CONFIDENTIAL
Enron Corp.
Case No. EC-2002-01038
Doc No. E158DC162
Date: 01/15/2003
ENRON CORP. - PRODUCED PURSUANT TO FERC SUBPOENA.
SUBJECT TO PROTECTIVE ORDER. CONFIDENTIAL TREATMENT REQUESTED.
ENRON-314480182010

CONFIDENTIAL
Enron Corp.
Case No. EC-2002-01038
Doc No. E158DC162
Date: 01/15/2003
ENRON CORP. - PRODUCED PURSUANT TO FERC SUBPOENA.
SUBJECT TO PROTECTIVE ORDER. CONFIDENTIAL TREATMENT REQUESTED.
RELEASE IN PART

-----Original Message-----
From: "Harris, Daniel" <Daniel.Harris@gs.com>@ENRON
Sent: Tuesday, October 09, 2001 8:21 AM
To: Shackleton, Sara; Daniel.Harris@gs.com; Daniel.Harris@gs.com
Cc: kara.saxon@gs.com; Heard, Marie; talya.gordon@gs.com; Glover, Sheila
Subject: RE: ECT Investments, Inc. account with Goldman Sachs International

please let me know which provision of the terms of business you think should
be amended in that way.

-----Original Message-----
From: Sara.Shackleton@enron.com [mailto:Sara.Shackleton@enron.com]
Sent: 09 October 2001 14:18
To: Daniel.Harris@gs.com; Daniel.Harris@gs.com
Cc: kara.saxon@gs.com; Marie.Heard@enron.com; talya.gordon@gs.com; Sheila.Glover@enron.com
Subject: RE: ECT Investments, Inc. account with Goldman Sachs International

Daniel:

What about the limitation of liability language which you suggested could
be similar to the PB agreement (your 9/20/01 email)?

Sara

-----Original Message-----
From: "Harris, Daniel" <Daniel.Harris@gs.com>@ENRON
Sent: Tuesday, October 09, 2001 1:51 AM
To: Shackleton, Sara; Daniel.Harris@gs.com
Cc: kara.saxon@gs.com; Heard, Marie; talya.gordon@gs.com; Glover, Sheila
Subject: RE: ECT Investments, Inc. account with Goldman Sachs International

Please see attached.

-----Original Message-----
From: Sara.Shackleton@enron.com [mailto:Sara.Shackleton@enron.com]
Sent: 08 October 2001 20:39

CONFIDENTIAL
Enron Corp.
Case No. EC-2002-01038
Doc No. E158DC162
Date: 01/15/2003
ENRON CORP. - PRODUCED PURSUANT TO FERC SUBPOENA.
SUBJECT TO PROTECTIVE ORDER. CONFIDENTIAL TREATMENT REQUESTED.
ENRON-314480182010

CONFIDENTIAL
Enron Corp.
Case No. EC-2002-01038
Doc No. E158DC162
Date: 01/15/2003
ENRON CORP. - PRODUCED PURSUANT TO FERC SUBPOENA.
SUBJECT TO PROTECTIVE ORDER. CONFIDENTIAL TREATMENT REQUESTED.
RELEASE IN PART

To: Daniel.Harris@gs.com
Cc: kara.saxon@gs.com; Marie.Heard@enron.com; talya.gordon@gs.com; Sheila.Glover@enron.com
Subject: RE: ECT Investments, Inc. account with Goldman Sachs International

Daniel: With respect to the Terms of Business Letter, please email a copy
of the proposed side letter (to handle arbitration and limitation of liability). I just want to review the "final product". We have all other
documents ready for immediate execution. Sorry for the delay and I appreciate your patience. Regards.

Sara Shackleton
Enron Wholesale Services
1400 Smith Street, EB3801a
Houston, TX 77002
Ph: (713) 853-5620
Fax: (713) 646-3490

-----Original Message-----
From: "Harris, Daniel" <Daniel.Harris@gs.com>@ENRON

[mailto:IMCEANOTES-+22Harris+2C+20Daniel+22+20+3CDaniel+2EHarris+40gs+2Ecom+3E+40ENRON@ENRON.com]

Sent: Thursday, September 20, 2001 3:44 AM
To: Shackleton, Sara
Cc: kara.saxon@gs.com; Heard, Marie; talya.gordon@gs.com; Glover, Sheila
Subject: RE: ECT Investments, Inc. account with Goldman Sachs International

Sara

Arbitration - we will agree to English courts as per the language amending
the osla. I will prepare an amendment side letter.

CONFIDENTIAL
Enron Corp.
Case No. EC-2002-01038
Doc No. E158DC162
Date: 01/15/2003
ENRON CORP. - PRODUCED PURSUANT TO FERC SUBPOENA.
SUBJECT TO PROTECTIVE ORDER. CONFIDENTIAL TREATMENT REQUESTED.
ENRON-314480182010

Limitation of Liability - this is our standard position. I propose the language agreeed to by you for the PB agreement.

I trust this will now close the open issues.

I look forward to hearing from you

Kind regards

Daniel

-----Original Message-----
From: Sara.Shackleton@enron.com [mailto:Sara.Shackleton@enron.com]
Sent: 17 September 2001 23:51
To: Daniel.Harris@gs.com
Cc: kara.saxon@gs.com; Marie.Heard@enron.com; talya.gordon@gs.com; Sheila.Glover@enron.com
Subject: RE: ECT Investments, Inc. account with Goldman Sachs International

Daniel:

Thank you for your response. Unfortunately, the outstanding issues relating to the Terms of Business Letter impact our corporate policy. If you insist upon arbitration, it should be at either party's option and we can agree to arbitrate in accordance with the International Chamber of Commerce Rules. Also, as you mentioned below, there may be non-prime brokerage issues that relate to the terms of business and, therefore, are not adequately addressed in the terms of business letter. We do have other business relationships with GSI and again request inclusion of

limitation
of liability language in the terms of business letter. I propose:

"Neither party shall have any liability arising from this Letter or
from
any obligations which relate to this Letter for any indirect, special,
punitive, exemplary, incidental or consequential loss or damage."